



New Towns Act 1975

1975 CHAPTER 42

An Act to raise the limits imposed by the New Towns Act 1965 on the amounts which may be borrowed by the development corporations for new towns and the Commission for the New Towns and make provision for the payment of pensions to chairmen of development corporations and of remuneration and allowances to members of committees conducting business for the Commission. [3rd July 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase of limits on borrowing imposed by ss. 42(5) and 43 of New Towns Act 1965.

1965 c. 59.

1.—(1) In subsection (5) of section 42 of the New Towns Act 1965 (which enables the Secretary of State to advance to the Commission for the New Towns to meet a deficit on revenue account sums not exceeding in aggregate £1,000,000) for “ aggregate amount of the advances made ” there is substituted “ sum of the amounts outstanding at any one time in respect of the principal of the sums advanced ”.

(2) The following section is substituted for section 43 of the said Act of 1965—

“ Limit on borrowing by development corporations and Commission.

43. The sum of the amounts outstanding at any one time in respect of the principal of the following sums, that is to say —

(a) the sums advanced to development corporations before the commencement of this Act under section 12(1) of the New Towns Act 1946 in its application to England and Wales

1946 c. 68.

(to which section 42(1) of this Act corresponds) and, after the commencement of this Act, under the said section 42(1);

(b) the sums advanced to development corporations before the commencement of the New Towns (Scotland) Act 1968 under the said section 12(1) in its application to Scotland (to which section 37(1) of the said Act of 1968 corresponds) and, after the commencement of the said Act of 1968, under the said section 37(1); 1968 c. 16.

(c) the sums advanced to the Commission before the commencement of this Act under section 3(1) of the New Towns Act 1959 (to which section 42(4) of this Act corresponds) and, after the commencement of this Act, under the said section 42(4); and 1959 c. 62.

(d) the sums borrowed (whether by development corporations or by the Commission) under section 42A of this Act or under section 37A of the said Act of 1968;

shall not exceed £1,750 million or such greater sum not exceeding £2,250 million as the Secretary of State may by order specify.”.

(3) In section 53 of the said Act of 1965 (regulations and orders) in subsection (4) for “and 41” there is substituted “41 and 43”, and in subsection (6) (which provides that certain orders shall not be of effect until approved by the House of Commons) after “section 39(5)” there is inserted “or 43.”

2.—(1) In Schedule 2 to the said Act of 1965 (which among other things provides for the payment of remuneration and expenses to the chairmen of development corporations) after paragraph 7 there is inserted the following paragraph— Pensions for chairmen of corporations, etc.

“ Pension benefits for chairmen

7A. In the case of any such person, who is or has been the chairman of the corporation, as the Secretary of State may with the consent of the Minister for the Civil Service determine, the Secretary of State may direct the corporation—

(a) to pay to or in respect of that person on his retirement or death such pension, allowance or gratuity as may be so determined, or

(b) to make payments towards the provision of such a pension, allowance or gratuity.”

(2) In Schedule 9 to the said Act of 1965 (which among other things enables the Commission for the New Towns to set up committees to conduct the Commission's business in any new town) after paragraph 3 there is inserted the following paragraph—

“ Remuneration and expenses of members of committees

3A. In the case of any such person as the Secretary of State may with the consent of the Minister for the Civil Service determine, the Secretary of State may, in respect of that person's service as member of any committee set up under paragraph 3(2) of this Schedule, pay out of money provided by Parliament such remuneration, and such allowances in respect of expenses properly incurred by that person in that capacity, as may be so determined.”.

1968 c. 16.

(3) In Schedule 2 to the New Towns (Scotland) Act 1968 (which among other things provides for the payment of remuneration and expenses to the chairmen of development corporations) after paragraph 7 there is inserted the following paragraph—

“ Pension benefits for chairmen

7A. In the case of any such person, who is or has been the chairman of the corporation, as the Secretary of State may with the consent of the Minister for the Civil Service determine, the Secretary of State may direct the corporation—

- (a) to pay to or in respect of that person on his retirement or death such pension, allowance or gratuity as may be so determined, or
- (b) to make payments towards the provision of such a pension, allowance or gratuity.”

Short title,
repeals and
extent.

1974 c. 8.

1971 c. 81.

1965 c. 59.

3.—(1) This Act may be cited as the New Towns Act 1975.

(2) The following enactments are hereby repealed—

- (a) in the Statutory Corporations (Financial Provisions) Act 1974, paragraph 3 of Schedule 3;
- (b) the New Towns Act 1971;
- (c) in Schedule 10 to the New Towns (Scotland) Act 1968, the paragraph relating to the New Towns Act 1965.

(3) This Act does not extend to Northern Ireland.